

Justification for Other than Full and Open Competition
Purchase Request No. NB193000-25-00764

1. AGENCY/CONTRACTING ACTIVITY

U.S. Department of Commerce, National Institute of Standards and Technology (NIST), Acquisition Management Division (AMD)

2. NATURE AND/OR DESCRIPTION OF ACTION BEING APPROVED

Noncompetitive procurement of water and sewer services

3. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING ESTIMATED VALUE)

NIST has a present and continuing requirement for water and sewer services for the daily operation of the Gaithersburg, Maryland campus. NIST requires the contractor to provide the Government facility/NIST campus with water and wastewater/sewer services in a manner and form that is consistent with all applicable laws, rules, codes, industry standards, permits and regulations promulgated by all Governmental authorities having jurisdiction. The contractor will be required to provide services on an uninterrupted daily basis, 365 days per year. Moreover, the contractor will be responsible to ensure that the pipelines and associated equipment utilized to provide water and wastewater/sewer services are maintained and operated in compliance with all rules and regulations set by the federal, state, county and local Government for safe and sanitary water and wastewater/sewer services.

Funding is available and will be held in an account for uncontrollable cost for water and sewer services. NIST will pay for services based on the actual usage at the WSSC annually public published rate(s) at the time after the contractor submits an invoice, and after NIST approves it for payment.

NIST has three accounts with WSSC for water and sewer utility services. Those accounts are listed below:

- Water Acct. No. 380732000
- Water Acct. No. 903564000
- Sewer Acct. No. 915592000

The Contracting Officer will establish a contract to provide the NIST Office of Financial Resource Management a control number for billing of monthly utility usage. The period of performance will be from 4/01/25 through 4/30/2026. The estimated value is \$1,840,984.12 for water and \$1,936,526.68 for sewer, for an estimated total value of \$3,777,510.80.

4. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION.

41 U.S.C. 3304(a)(1), as implemented by FAR 41.205(a)

5. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR NATURE OF THE ACQUISITION REQUIRES THE USE OF THE AUTHORITY CITED

Washington Suburban Sanitary Commission (WSSC) is a multi-county agency established in 1917 by an act of the Maryland legislature to build, own, and operate the public water and wastewater systems in Montgomery and Prince Georges County. Since that time no other entity has been able to operate or provide water and wastewater service in the areas covered under the legislature. This information was verified through market research showing that WSSC multi-county legislature to operate as a sole provider. WSSC is the sole provider of all water and wastewater utility services (i.e., production, distribution, system operation and maintenance, collection, treatment, metering, billing, etc.) for Montgomery County, Maryland;

Gaithersburg is in Montgomery County.

6. DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE

See section 5 above. No efforts are being made to solicit from additional sources because no other sources are authorized to provide the required services.

7. DEMONSTRATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE

The estimated average monthly cost is based on usage from historical data at the NIST Gaithersburg, Maryland campus for the water and sewer usage. WSSC is a non-profit, public utility; their rates produce only the revenues needed to support services and operation. The rate structure is comprised of both variable and fixed rates and reflect the cost to provide services to different customers based on their usage characteristics. The utility rates can be found at <https://www.wsscwater.com/rates>. Contract pricing for services will be based on annual fixed published rates. Therefore, the Contracting Officer has determined the price to be fair and reasonable.

8. DESCRIPTION OF MARKET RESEARCH CONDUCTED AND THE RESULTS

Market research techniques used for this acquisition were the Contracting Officer's knowledge regarding current market conditions and capability to meet the agency requirement, review of the Montgomery County website and the Department of Environmental Protection website for Montgomery County to determine if there are any other providers of water and wastewater/sewer services that have been approved by the county. No other provider(s) of these services could be identified. WSSC continues to be the only provider of water and wastewater/sewer services in the Gaithersburg Maryland.

The NAICS code for the required services is 924110, Administration of Air Water Resources and Solid Waste Management Programs. This industry comprises government establishments primarily engaged in one or more of the following: (1) the administration, regulation, and enforcement of air and water resource programs; (2) the administration and regulation of solid waste management programs; (3) the administration and regulation of water and air pollution control and prevention programs; (4) the administration and regulation of flood control programs; (5) the administration and regulation of drainage development and water resource consumption programs; (6) the administration and regulation of toxic waste removal and cleanup programs; and (7) coordination of these activities at intergovernmental levels.

Market research has determined that the NIST's need can be met by what is regularly available in the marketplace and is used by the general public. WSSC is the only source that can provide the required services.

9. ANY OTHER FACTS SUPPORTING USE OF OTHER THAN FULL AND OPEN COMPETITION

The following information is provided per FAR 41.205(b) Separate Contracts.

- 1) The number of available suppliers: One. WSSC is the sole source provider of subject services for Montgomery County and Gaithersburg Maryland.
- 2) Any special equipment, service reliability, of facility requirements and related cost: WSSC provides safe drinking water and wastewater treatment for Montgomery and Prince George's Counties in Maryland except for a few cities in both counties that continue to operate their own water facilities.

The Commission is one of the largest water and wastewater utilities in the United States. WSSC serves about 1.8 million people in an approximately 1,000-square-mile (2,600 km²) area. It owns

and manages over 11,000 miles (18,000 km) of water and sewer mains.

A bi-county agency, WSSC has extensive regulatory functions. It promulgates and enforces the plumbing code for its jurisdiction as well as reviews and approves contract plans for extensions of water and sewer mains. The agency operates 3 reservoirs (plus shared access to a fourth reservoir), 2 drinking water filtration plants, and 6 wastewater treatment plants.

- 3) The utility supplier's rates, connection charges and termination liability:
Utility rates can be found at <https://www.wsscwater.com/rates>. (URL subject to change).
- 4) Total estimated contract value (including cost in paragraph 2 and 3):
\$3,777,510.80 approximately to be billed over the period of 4/01/2025 – 4/30/2026 at the annual public fixed rate. The estimated billing over the life of the contract are based on the estimated usage for each utility type listed below.

Contract Line Item Number	Description	Estimated Units Usage per year
0001	Water	171,975
0002	Sewer	110,297

- 5) Any technical or special contract terms required: None
- 6) Any unusual characteristics of services required: None

The utility's wheeling or transportation policy for utility service: Not applicable

10. LISTING OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

None

11. STATEMENT OF ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION

The Code of Maryland Regulations (COMAR) 26.03.01.05 specifies that individual water supply or individual sewerage system may not be permitted to be installed where an adequate community water or sewerage facility is available. If that changes, then the Acquisition Management Division would ensure that any restrictions to competition are adequately supported and approved before proceeding with the acquisition.

12. TECHNICAL REQUIREMENTS PERSONNEL CERTIFICATION

I certify that the supporting data used to form the basis of this Justification is complete and accurate to the best of my knowledge and belief.

DAWN GERACI Digitally signed by DAWN GERACI
Date: 2025.03.13 08:49:03 -04'00'

Dawn Geraci

By signature on this Justification for Other than Full and Open Competition, the Contracting Officer certifies that this Justification is accurate and complete to the best of their knowledge and belief.

ALEXANDRA
GARCIA

 Digitally signed by ALEXANDRA
GARCIA
Date: 2025.03.24 23:48:34 -04'00'

Alexandra B. Garcia
Contracting Officer

Approved:

JOSEPH WIDDUP  Digitally signed by JOSEPH WIDDUP
Date: 2025.03.25 09:34:44 -04'00'

Joseph Widdup
NIST Competition Advocate